



LAZY DOG

— CAPITAL —

CREDIT BID WORKSHEET

INTERNAL — NOT SENT TO ANYONE

Prepared before the foreclosure sale. Decides the number you walk in with.

Property: _____

Borrower: _____ Sale date: _____ (first Tuesday)

Trustee: _____ Prepared by: _____

TOTAL DEBT AS OF SALE DATE

Unpaid principal	\$
Accrued interest — contract rate	\$
Accrued interest — default rate 18.000%	\$
Late charges	\$
Advances — taxes, insurance, preservation	\$
Attorney, trustee, posting, and sale costs	\$
TOTAL DEBT	\$

Attach the Itemized Statement of Total Debt.

WHAT THE PROPERTY IS WORTH

As-is value — in house	\$
Cost to complete	\$
Carrying costs to resale	\$
Selling costs (commission, title, closing)	\$
Net recovery if we take it and finish it	\$

☐ Comps saved to the deal folder

☐ Photos of current condition

LIENS SURVIVING OR PRIMING

CLAIMANT	AMOUNT	RECORDED	PRIMES US?
	\$		☐
	\$		☐

Any lien with inception of work before our Deed of Trust survives the sale.

Foreclosure clears juniors, not seniors. Subtract anything that primes.

Total priming liens: \$ _____

CAPITAL PARTNER

☐ No capital partner on this loan

☐ Capital partner: _____ Owed: \$ _____

They are paid first from sale proceeds, ahead of Lazy Dog.

☐ Notified of the sale date

THE BID

OPTION	NUMBER	WHEN IT'S RIGHT
Full debt bid	\$ _____	We're happy to take the property back at this price
Reduced bid	\$ _____	We'd rather a third party buy it; sets a lower floor
Minimum acceptable	\$ _____	Below this we take it back instead

Our bid: \$ _____

Why this number

BEFORE YOU SET IT — THINK ABOUT

Bidding the full debt means if nobody outbids you, you own the property at that price and there's no deficiency left to pursue. Clean, but you've absorbed the whole loss into the asset.

Bidding low invites a third party to take it and pay you cash. It also opens a fair-market-value fight under Texas Property Code § 51.003 if you later sue on the guarantee — the borrower gets to argue the property was worth more than you bid.

If you plan to pursue a deficiency, do not bid low without a documented valuation. That valuation is your evidence.

If you don't plan to pursue a deficiency, a full-debt credit bid is usually the simpler path.

☐ Both Managers agree on the bid

_____ Date: _____

Lewis McKnight, Manager

_____ Date: _____

Stephen Maner, Manager

AFTER THE SALE

Sold to	☐ Third party ☐ Lazy Dog credit bid
Winning bid	\$
Surplus over total debt, if any	\$

A surplus does not belong to you. It goes to junior lienholders in order of priority, then to the borrower. Have the trustee handle it, or interplead it. Keeping a surplus is how a clean foreclosure turns into a lawsuit.

☐ Trustee's Deed recorded

☐ Capital partner paid and post-sale accounting sent

☐ Vacant property insurance bound (*if we took it back*)

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